

5 October 2021

File No: C/21/14020

Richard Mclean

Email: richarddrawsstuff@gmail.com

Dear Richard Mclean

Your complaint to the Victorian Ombudsman

I refer to your responses to my preliminary outcome letter regarding your complaint about the Werribee Mercy Hospital ('the hospital') and the Mental Health Complaints Commissioner ('MHCC'). You have sent several emails since I sent you my preliminary outcome letter on 6 September 2021, and we spoke about your complaint on the phone on 15 September 2021.

In my preliminary outcome letter, I advised that I had decided it is not justifiable to continue to deal with your complaint. This was because I considered the Ombudsman's further involvement was unlikely to achieve a practical outcome beyond that which has already been achieved, and there were insufficient grounds for this office to make further enquiries with the hospital or the MHCC.

I acknowledged that the hospital failed to properly search you when you returned from your hospital ground leave on 24 February 2021. I noted, however, that while the hospital did fail to remove your vape pen from you after you left the hospital grounds to use it, it has apologised to you for the failure to do so and has also acknowledged the impact that returning the broken toilet brush to you had.

In my preliminary outcome letter, I advised that your complaint would be closed by 20 September 2021 unless you provided new information to change my view. I note that you asked for additional time to provide further information relating before the matter was finalised, which I provided.

I have reviewed the additional information you provided in support of your complaint, both via email and over the phone.

You state you have had insufficient support from Mercy Mental Health. You provided a copy of a letter from the Mercy Mental Health Saltwater Clinic dated

15 September 2021 which states that your case has been closed at your request and as a result of the therapeutic impasse you are at. That letter notes that despite your disagreement with your previous diagnosis of schizophrenia, treatment is still available from the clinic to support your recovery if you change your mind about continuing your treatment.

I recognise you feel that the hospital and the MHCC have not taken adequate action to respond to your complaint, and that you have been provided insufficient support. However, I remain of the view that the hospital and the MHCC have both responded appropriately to your concerns. The hospital has acknowledged its error and the impact this had on you, including extending an apology to you. The MHCC is unable to provide you with legal representation, and I consider it has appropriately handled your complaint by requesting information from the hospital and considering your concerns.

I understand that you disagree with my conclusions and you have expressed your view that this office is part of a conspiracy against you. I do not, however, believe there is any substantial practical outcome to be achieved by taking further action. As such, this letter confirms that my consideration of your complaint has concluded and that I have closed your case.

Please note that further correspondence from you regarding this matter will be considered but may not be responded to unless it raises new issues.

I note that the 15 September 2021 letter to you from Mercy Mental Health states that further treatment is available to you should you choose to pursue it, and I encourage you to do so.

Internal Review

If you believe I have made an error in assessing your complaint, you may request an internal review within 60 days of the date of this letter. In your request, please outline where you believe I made an error and provide evidence in support of your belief.

Please note that internal reviews are not conducted where a person simply disagrees with a decision or wants a different outcome.

For further information about our internal review process, visit <https://www.ombudsman.vic.gov.au/complaints/make-a-complaint-about-us/>.

Yours sincerely

Ben Calder
Investigation Officer